

STATE OF NEW YORK

8371--A

2025-2026 Regular Sessions

IN ASSEMBLY

May 13, 2025

Introduced by M. of A. KELLES -- read once and referred to the Committee on Local Governments -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT in relation to authorizing the town of Ithaca to alienate and discontinue the use of certain parklands

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Subject to the provisions of this act, the town of Ithaca,
2 located in the county of Tompkins, acting by and through its governing
3 body and upon such terms and conditions as determined by such body, is
4 hereby authorized to discontinue as parklands and alienate the lands
5 more particularly described in section three of this act, for the
6 purpose of maintaining and operating such lands for agricultural
7 purposes.

8 § 2. The authorization provided in section one of this act shall be
9 effective only upon the condition that the town of Ithaca, county of
10 Tompkins, shall dedicate the lands described in section four of this act
11 as parkland, provided that the town has never used such lands for public
12 open space or park purposes.

13 § 3. The parklands authorized by section one of this act to be alien-
14 ated are described as follows:

15 ALL THAT TRACT OR PARCEL OF LAND situate in the Town of Ithaca, County
16 of Tompkins, State of New York, and being more particularly bounded and
17 described as follows:

18 BEGINNING at a point in the centerline of Seven Mile Drive which point
19 is 1,418 feet, more or less, northeasterly from the intersection of the
20 said centerline line of Seven Mile Drive with the intersection of the
21 centerline of New York State Route 13;

22 RUNNING THENCE South 69 degrees 27 minutes 00 seconds East passing
23 through an iron pin at 25.31 feet, a total of 657.15 feet to a point in
24 the centerline of a stream which point is also in the northwesterly

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 boundary line of premises now or formerly of International Assoc. of
2 Machinist (613/979);
3 RUNNING THENCE northeasterly along the said centerline of said stream a
4 distance of 517 feet more or less, on a chord bearing of North 67
5 degrees 42 minutes 50 seconds East a distance of 1512 feet to an iron
6 pin; thence North 11 degrees 32 minutes 10 seconds East a distance of
7 243.65 feet to an iron pin;
8 THENCE North 89 degrees 59 minutes 50 seconds West a distance of 765.48
9 feet to an iron pin;
10 THENCE North 41 degrees 17 minutes 45 seconds West a distance of 56.69
11 feet to an iron pin;
12 THENCE southwesterly and westerly on a curve to the right a distance of
13 153.29 feet on a chord bearing and distance of South 75 degrees 38
14 minutes 00 seconds West 148.15 feet to an iron pin;
15 THENCE North 78 degrees 32 minutes 04 seconds West a distance of 145.78
16 feet to a point in the said centerline of Seven Mile Drive;
17 THENCE South 11 degrees 34 minutes 05 seconds West along said centerline
18 of Seven Mile Drive a distance of 241.97 feet to the point or place of
19 beginning. Said parcel containing an area of 8.33 acres, more or less.
20 § 4. Prior to the discontinuance and alienation of the parkland
21 described in section three of this act, the town of Ithaca, acting by
22 and through its governing body, shall dedicate as parklands the property
23 described as follows:
24 ALL THAT TRACT OR PARCEL OF LAND situate in the Town of Ithaca, County
25 of Tompkins, State of New York, being bounded and described as follows:
26 Beginning at a point in the present centerline of Seven Mile Drive, said
27 point being further located a distance of approximately 525' Southerly
28 from the present centerline intersection of Seven Mile Drive and Peach-
29 tree Lane;
30 RUNNING THENCE South 70°02'30" East, passing through an iron pin found
31 at a distance of 25.24' and continuing for a total distance of 242.97'
32 to a point;
33 RUNNING THENCE South 56°39'25" East for a distance of 98.82' to a point;
34 RUNNING THENCE North 86°29'15" East for a distance of 164.65' to a
35 point;
36 RUNNING THENCE North 79°44'05" East for a distance of 22.52' to a point;
37 RUNNING THENCE North 84°10'30" East for a distance of 172.39' to a
38 point;
39 RUNNING THENCE South 61°04'34" East for a distance of 164.05' to a pin
40 found;
41 RUNNING THENCE South 46°21'14" East for a distance of 75.49' to an iron
42 pin found;
43 RUNNING THENCE South 85°10'36" East, passing through an iron pin found
44 at a distance of 215.05' and continuing for a total distance of 218.85'
45 to a point;
46 RUNNING THENCE South 01°24'39" East for a distance of 215.00' to an iron
47 pin set;
48 RUNNING THENCE South 88°27'47" West, passing through an iron pin set at
49 a distance of 1053.61' and continuing for a total distance of 1078.36'
50 to a point;
51 RUNNING THENCE North 01°26'24" West along the present centerline of
52 Seven Mile Drive for a distance of 499.52' to the point and place of
53 beginning;
54 Said parcel containing an area of 8.33 acres net to the road right of
55 way.

1 SUBJECT TO covenants, restrictions, easements and encumbrances of
2 record.

3 For a more particular description thereof, reference is hereby made to a
4 survey map entitled "Subdivision Map Showing Lands of Eddy Hill, Inc.,
5 Located on Seven Mile Drive, Town of Ithaca, Tompkins County, New
6 York", dated March 11, 2025, prepared by T.G. Miller, P.C., Engineers
7 and Surveyors, Ithaca, New York, filed concurrently herewith and incor-
8 porated herein by reference.

9 § 5. In the event that the parklands described in section four of this
10 act to be acquired and dedicated by the town of Ithaca pursuant to this
11 act are not equal to or greater than the parklands described in section
12 three of this act being alienated, the town of Ithaca shall dedicate the
13 difference of the fair market value of the lands to be alienated and the
14 lands to be dedicated for the acquisition of additional parklands and/or
15 for capital improvements to existing park and recreational facilities.

16 § 6. In the event that the town of Ithaca received any funding support
17 or assistance from the federal government for the purchase, maintenance
18 or improvement of the parklands set forth in section three of this act,
19 the discontinuance and alienation of such parkland authorized by the
20 provisions of this act shall not occur until the town of Ithaca has
21 complied with any federal requirements pertaining to the alienation or
22 conversion of parklands, including satisfying the secretary of the inte-
23 rior that the alienation or conversion complies with all conditions
24 which the secretary of the interior deems necessary to ensure the
25 substitution of other lands shall be equivalent in fair market value and
26 usefulness to the lands being alienated or converted.

27 § 7. This act shall take effect immediately.